



Notification Waiver Determination

REST – Perth Airport

Acquisition	Retail Employees Superannuation Pty Limited as trustee for the Retail Employees Superannuation Trust (REST) applied for a notification waiver in respect of its proposed acquisition of 9.14% of the issued share capital in Perth Airport Development Group Pty Ltd (PADG) currently held by Gardior Pty Ltd as trustee of The Infrastructure Fund (TIF) and Australian Retirement Trust Pty Ltd as trustee for ART Infrastructure Trust 3, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	24 September 2026

Parties to the Acquisition	The acquirer, REST, is an Australian profit-to-member superannuation fund with approximately 2 million members and around \$112 billion in funds under management. The corporate trustee of REST is Retail Employees Superannuation Pty Limited. REST holds a minority non-controlling interest in Australian Pacific Airports Corporation Limited, the holding company of Melbourne Airport and Launceston Airport, and a one-third interest in Moorabbin Airport Corporation Pty Ltd, which holds a long-term airport lease for and operates Moorabbin Airport in Victoria. TIF is an unlisted infrastructure investment fund managed by Macquarie Asset Management, a global asset manager. The corporate trustee for TIF is Gardior Pty Ltd. ART Infrastructure Trust 3 is an unlisted infrastructure investment fund managed by its corporate trustee, Australian Retirement Trust Pty Ltd. Australian Retirement Trust Pty Ltd is also the corporate trustee of Australian Retirement Trust, an Australian superannuation fund. PADG holds all the issued shares in Perth Airport Pty Ltd, which is responsible for the operation and development of Perth Airport in Western Australia. Aside from TIF and ART Infrastructure Trust 3, the current shareholders in PADG are the Future Fund, the Utilities Trust of Australia and AustralianSuper.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act).

	Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition given: a. there is no horizontal overlap in the supply of airport services in Perth between Perth Airport and REST's other airport interests. b. there is a low risk of foreclosure or other concerning vertical or conglomerate effects resulting from exclusionary conduct, bundling or tying of services post-acquisition. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act